Michigan Constitutional Amendment: Public Qualification and Required Legislative Judgment

Proposed Addition to Article IV of the Constitution of Michigan of 1963

Sec. 55. Public Qualification and Required Legislative Judgment.

(1) Eligible Measures and Qualification

A bill or joint resolution proposing an amendment to this constitution that has been formally introduced in either house of the Legislature and contains substantive operative text is eligible for qualification under this section. Nothing in this section alters the requirements of Article XII for proposing, submitting, or adopting an amendment to this constitution.

An eligible measure becomes qualified when the public qualification record maintained under subsection (5) shows that verified, valid, and unexpired support satisfies any one of the following four independent requirements:

(a) Qualified Electors. For a bill, authenticated declarations requesting a final legislative vote on the measure, signed by qualified electors of this state numbering not less than four percent of the total votes cast for Governor in the gubernatorial election most recently preceding introduction of the measure. For a joint resolution proposing an amendment to this constitution, the threshold is eight percent of that gubernatorial vote total.

(b) Cities, Villages, and Townships. For a bill, resolutions requesting a final legislative vote on the measure adopted by the governing bodies of not less than one-third of the cities, villages, and townships of this state. For a joint resolution proposing an amendment to this constitution, the threshold is two-fifths of those entities.

(c) School Districts and Intermediate School Districts. For a bill, resolutions requesting a final legislative vote on the measure adopted by the governing bodies of not less than one-third of the school districts and intermediate school districts of this state. For a joint resolution proposing an amendment to this constitution, the threshold is two-fifths of those entities.

(d) Counties. For a bill, resolutions requesting a final legislative vote on the measure adopted by the boards of commissioners of not less than one-third of the counties of this state. For a

joint resolution proposing an amendment to this constitution, the threshold is two-fifths of the counties.

Each method of qualification is independent. Satisfaction of any one method is sufficient. Support under different methods shall not be combined to satisfy a threshold, and satisfaction or failure of one method neither impairs nor multiplies the legislative duty created by another.

For purposes of this section, a qualified elector is a person qualified to vote in Michigan under applicable constitutional and statutory law. Prior participation in a gubernatorial election is not required.

The number of eligible governmental entities in each class shall be determined from the most recent official state records applicable to that class and available when the measure was introduced. A school district or intermediate school district shall be counted as a separately constituted entity only once. A governmental entity shall not be counted more than once within the same qualification method for the same measure and official text.

Each declaration or resolution under this subsection shall identify one formally introduced measure and one publicly available official text of that measure.

Support identifying different official texts of the same measure shall not be aggregated toward the same qualification threshold. The official text for which a threshold is first satisfied is the qualified text for purposes of this section.

If two or more official texts first satisfy a threshold simultaneously, the qualified text shall be the one for which the earliest valid, unexpired, and unwithdrawn support then credited to that text was filed. If this rule does not resolve the tie, the qualified text shall be the earliest of those texts in the originating house's official sequence of published texts for the measure.

Each declaration or resolution remains effective for 270 calendar days after it is validly made, subject to subsection (5). Before qualification, support may be withdrawn or rescinded by the person or governmental body that provided it.

Once qualification creates a legislative duty, subsequent withdrawal, rescission, or expiration of support does not terminate that duty.

(2) Legislative Identity and Effect of Qualification

Support under this section shall identify a specific formally introduced measure and a specified publicly available official text of that measure.

Support for one measure shall not transfer to another merely because the measures are identical or similar in text, except as expressly provided in subsection (4).

Each house retains authority to consider, debate, and amend a qualified measure, subject to this constitution.

Amendment does not terminate qualification.

A final vote does not satisfy this section if the text voted upon, considered in relation to the qualified text, reflects amendments that, taken together, substitute legislation directed to a different legislative subject rather than amend the qualified measure.

For a bill, nothing in this subsection authorizes a change of original purpose prohibited by Article IV, Section 24.

If two or more formally introduced measures pending in the same house during the same two-year legislative period have identical operative text, a satisfying final vote on passage of one such measure satisfies any then-outstanding duty of that house to conduct a final vote on another such measure only if the text voted upon also satisfies this subsection when considered in relation to the qualified text of each measure whose duty would be satisfied.

Qualification does not approve a measure, determine its substantive validity, establish its constitutionality, or require either house to pass it.

(3) Required Legislative Judgment

If an eligible measure becomes qualified more than ninety calendar days before expiration of the two-year legislative period in which it is pending, the house in which the measure was introduced shall conduct a final vote on passage not later than forty-five calendar days after qualification.

For purposes of this section, a two-year legislative period is the period of service of a House of Representatives elected at a regular general election, including the two regular annual sessions occurring during that period.

The required final vote shall be recorded by yeas and nays, with the vote and name of each member voting entered in the journal of the house concerned.

Each house retains authority over debate, amendment, and legislative consideration, subject to the duty established by this section.

No committee rule, calendar rule, motion, adjournment while a constitutional quorum is present, or other proceeding of either house may postpone a required final vote beyond the applicable period.

For purposes of this section, a satisfying final vote is a final vote on passage that:

(a) satisfies subsection (2);

(b) is conducted in accordance with otherwise applicable constitutional procedures for taking a final vote on the measure, whether or not the measure obtains the votes required for passage; and

(c) is recorded by yeas and nays, with the vote and name of each member voting entered in the journal.

Only a satisfying final vote discharges a duty imposed by this subsection.

A satisfying final vote conducted before qualification shall be credited as satisfying a corresponding duty that qualification would otherwise impose on that house, provided the vote satisfies subsection (2) when considered in relation to the text that later becomes the qualified text.

If the originating house does not pass the measure upon a satisfying final vote, its duty under this section is satisfied and no duty arises in the other house solely by reason of that qualification.

If the originating house passes the measure upon a satisfying final vote and the other house has not already conducted a satisfying final vote on that measure, the duty of the other house arises upon the later of passage or qualification.

For purposes of this section, the measure as passed shall be deemed pending before the other house upon passage and shall be transmitted to that house forthwith.

The other house shall conduct a satisfying final vote on passage not later than forty-five calendar days after its duty arises.

If a duty imposed by this subsection remains unsatisfied after its applicable period has expired, the final question of passage shall become pending by force of this section. At the first sitting thereafter at which a constitutional quorum is present, the house concerned shall put all such outstanding questions before proceeding to other legislative business, in such order as that house determines.

Absence of a quorum does not satisfy or terminate a duty while the legislative period remains in effect.

Nothing in this section:

(a) compels either house or any member to approve a measure;

(b) prescribes how a member shall vote;

(c) alters the quorum requirement of Article IV, Section 14;

(d) alters the constitutional requirements for bills under Article IV, including Sections 24 and 26;

(e) alters the two-thirds legislative voting requirement or electoral-approval requirements of Article XII, Section 1, for proposed constitutional amendments;

(f) authorizes a measure to become law without otherwise required legislative passage, gubernatorial action, or other constitutional procedures; or

(g) diminishes the committee-discharge authority protected by Article IV, Section 16.

This section imposes no legislative voting duty beyond the votes expressly required by it.

(4) Legislative Continuity

Qualification remains effective throughout the two-year legislative period in which a duty under subsection (3) attaches, notwithstanding adjournment, recess, or a change of regular session.

The carryover of pending business from an odd-numbered year's regular session to the succeeding regular session under Article IV, Section 13, shall preserve the status of an eligible or qualified measure under this section.

If an eligible measure first satisfies a qualification threshold during the final ninety calendar days of a two-year legislative period, the mandatory-vote duty under subsection (3) does not attach during that period.

Expiration of a two-year legislative period does not recreate or continue a legislative measure in the succeeding period.

A declaration or resolution may, when made, authorize its application while unexpired to a measure formally introduced during the immediately succeeding two-year legislative period if that measure contains operative text identical to the official text identified by the original support.

Authorized, unexpired support shall count toward qualification of the succeeding measure on the same terms as support newly given for that measure.

No legislative voting duty arises in the succeeding period unless an eligible measure is formally introduced and support credited to one official text of that measure satisfies a threshold under subsection (1).

An unsatisfied voting duty does not carry into a succeeding two-year legislative period solely because the earlier measure or its text was previously qualified.

(5) Administration, Verification, and Default Operation

The Legislature shall provide by law uniform, impartial, auditable, and reasonably accessible procedures for administering qualification under this section.

The procedures shall provide for:

(a) receipt and authentication of individual declarations and governmental resolutions;

(b) verification of the identity and eligibility of supporting persons or governmental entities;

(c) identification of the formally introduced measure and official text supported;

(d) determination of the applicable qualification denominator and threshold;

(e) maintenance of a public qualification record;

(f) correction of administrative errors and preservation of an auditable record of corrections;

(g) protection of personal information not necessary for the public qualification record; and

(h) prompt notice of administrative determinations and access to appropriate review.

The public qualification record shall identify, for each eligible measure and each official text for which support has been filed, the verified aggregate support credited under each qualification method.

The public record shall identify the applicable threshold, the date on which it was satisfied, the qualified text, and the originating house.

Individual supporting electors' home addresses, personal identification numbers, signatures, and other protected personal information shall not be publicly disclosed merely because support was filed under this section.

No law, rule of either house, or administrative procedure may:

(a) alter the supporting actor classes or qualification thresholds established by this section;

(b) shorten the 270-day period of effectiveness for valid support except as expressly authorized by this section;

(c) require approval of the substantive policy merits of a measure as a condition of qualification;

(d) make qualification dependent upon discretionary approval by the Legislature or an administrative officer;

(e) impair one qualification method because another method has failed;

(f) combine support for different official texts contrary to subsection (1); or

(g) restore indefinite nonconsideration after a mandatory voting duty has attached.

Failure to enact or maintain implementing legislation does not suspend a right, qualification, or legislative duty established by this section.

The default procedures established by this subsection remain available except while an alternative state filing and verification system established by law is operational, reasonably accessible, and consistent with this section. They resume automatically whenever such a system is not operational or no longer satisfies those conditions.

Under the default procedures, support may be filed directly with the Secretary of State.

The Secretary of State shall receive, preserve, authenticate, aggregate, and maintain the public qualification record.

Verification of elector declarations shall be conducted through the Secretary of State and the Board of State Canvassers according to their functions as assigned by this section and applicable implementing law. The Board of State Canvassers shall make the final administrative

determination of the validity of elector declarations when its determination is required under this section.

Governmental resolutions shall be verified through official records or other reliable official evidence establishing the identity and authority of the governmental body and the valid adoption of the resolution.

Any state filing and verification system operating under this section shall, not later than thirty calendar days after receipt of filed support, verify and credit that support to the public qualification record or issue a written determination identifying the objective ground for rejection.

An individual declaration shall be signed or otherwise authenticated under penalty of perjury and shall contain information sufficient to verify the declarant's identity, qualification as a Michigan elector, and unique identity.

A person may not be counted more than once toward qualification of the same measure and official text.

A governmental resolution shall be supported by the public record of its lawful adoption or other reliable official certification.

Before qualification, filed support may be withdrawn by authenticated notice from the supporting elector or by valid official action of the governmental body that provided it.

Support filed while valid shall not expire solely because required verification remains pending after the date on which that support would otherwise expire.

If a timely judicial action challenges refusal, delay, or rejection of filed support, that support shall remain eligible for verification and credit until final resolution of the action.

Support preserved under these provisions counts toward qualification only if and when it is verified and credited to the public qualification record.

An eligible measure becomes qualified automatically when verified, valid, and unexpired support shown in the public qualification record first satisfies a threshold established by subsection (1).

No additional certification, publication, acknowledgment, legislative action, or discretionary approval is required for qualification.

Once qualification has created a duty under subsection (3), later correction, invalidation, or removal of support previously credited to the public qualification record does not retroactively invalidate qualification or terminate that duty.

The corrected record shall govern subsequent qualification calculations and any authorized application of support to a succeeding legislative period.

Nothing in this subsection prevents correction of the public record or enforcement of otherwise applicable law against fraud, forgery, false statements, or other unlawful conduct.

An elector or governmental body whose filed support is adversely affected by refusal, failure to comply with an applicable administrative deadline, or rejection may bring an action in a court of competent jurisdiction for declaratory or injunctive relief compelling performance of a nondiscretionary administrative duty or correcting a determination contrary to the objective and uniform criteria established by this section.

Judicial relief under this subsection is limited to administrative duties and determinations.

No court acting under this section may direct the Legislature, either house, or any member to conduct a legislative vote, prescribe how a member shall vote, or supervise legislative debate, amendment, or deliberation.

(6) Self-Execution, Effective Date, and Preservation

This section is self-executing.

The Legislature may enact laws reasonably necessary to facilitate its administration, but no implementing law may suspend, narrow, condition upon discretionary approval, or defeat an operative right or duty established by this section.

This section shall become operational twelve months after it becomes part of this constitution under Article XII.

During the implementation period, the Secretary of State, Board of State Canvassers, and other responsible state authorities may undertake lawful preparatory activity necessary to establish filing, verification, public-record, and administrative-review procedures.

The constitutional qualification and legislative voting duties established by this section apply only to measures introduced on or after the date the section becomes operational.

The provisions governing the four independent qualification methods shall operate separately to the greatest extent constitutionally permissible.

If one qualification method or its application is held invalid, the remaining valid qualification methods and applications shall remain in force.

If an administrative procedure, remedy, or implementing provision is held invalid, the remaining valid duties and procedures shall continue to operate to the greatest extent permitted by law.

Nothing in this section diminishes the sovereignty, treaty rights, governmental authority, or protections of federally recognized Indian Tribes. This section does not establish a Tribal qualification method or make a Tribal Nation subject to state verification duties by reason of its sovereign status.

Nothing in this section alters the constitutional procedures by which the people of Michigan may propose or adopt legislation or constitutional amendments through existing initiative, referendum, or constitutional-amendment processes.

AI-Assistance Disclosure

During the preparation and revision of this proposed constitutional amendment, the author used generative AI tools to assist with drafting support, language refinement, structural editing, legal-research organization, internal consistency review, and adaptation of an earlier federal constitutional model to Michigan's constitutional framework. The substantive policy choices, constitutional architecture, scope decisions, and final editorial judgments are the author's own. The author reviewed and approved the final manuscript and takes responsibility for its content.